

Court No. - 39

Case :- WRIT - C No. - 1784 of 2025

Petitioner :- Madan Kumar Vishkerma

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- A.K. Maurya I

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Siddhartha Varma,J.

Hon'ble Dr. Yogendra Kumar Srivastava,J.

1. When there was a bill generated by the Electricity Department and was sent to the petitioner by a communication dated 19.7.2023, the petitioner approached this Court by means of 27208 of 2023 wherein the following order was passed on 17.1.2024 :-

"1. Heard Sri A.K. Maurya, learned counsel for the petitioner, Sri Udit Chandra, learned counsel for respondent nos. 3 to 5 and Sri Rajiv Gupta, learned Additional Chief Standing Counsel for State-respondents.

2. Petitioner is aggrieved by order dated 19.07.2023 passed by respondent No. 4 deciding the dispute relating to carry forward of dues of the alleged erstwhile tenant of the premises owned by the petitioner as well as dispute relating to release of new connection.

3. The finding recorded in the impugned order is that one Mohan Lal was the tenant of the petitioner and there were dues outstanding against him. The same is to be paid before any new connection could be granted.

*4. Learned counsel for the petitioner submits that the dues are for a period more than two years old and, therefore, it cannot be recovered in view of Section 56 of the Act. In support of his contention, he has placed reliance on a judgement of Supreme Court in the case of **Ajmer Vidyut Vitran Nigam Limited V. Rahamatullah Khan, (2020) 4 SCC 650.***

5. Sri Udit Chandra, learned counsel appearing for respondents Electricity Department submits that the dispute in question falls squarely within the purview of Consumer Grievance Redressal Forum, under Clause 7.10 of the

U.P. Electricity Supply Code, 2005. He submits that since factual issues have been raised in the instant petition and, therefore, the petitioner should be relegated to the statutory remedy available under the Code 2005.

*6. Clause 7.10 (ii) & (iii) stipulates that any consumer aggrieved by any action of the Licensee, in respect of the matters mentioned in clauses 7.7.1 to 7.7.5 or those covered under the said Regulations may file a complaint with the Licensee. If the licensee fails to settle the complaint of the consumer within the time limits specified in the Code or otherwise provided in the Regulations, or the consumer is not satisfied by the decision of the licensee, the consumer may file a complaint in the Consumer Grievance Redressal Forum as per the specified procedure under the said Regulations. He submits that the dispute relating to carrying forward of the dues of the erstwhile tenant is a billing dispute covered under Clause 7.7.4 of the Code and the dispute relating to dues and new connection is covered by Clause 7.7.2 of the Code. He further submits that the judgement in **Rahamatullah Khan** has been distinguished by the Supreme Court in a latter judgement by Three Judges Bench in the case of **K.C. Ninan Vs. Kerala State Electricity Board & Ors., 2023 SCC Online SC 663**. He further submits that in any case, the aforesaid plea can also be raised by the petitioner before the Consumer Grievance Redressal Forum.*

7. Having considered the rival submissions, we are satisfied that the petitioner has alternative efficacious remedy of approaching the Consumer Grievance Redressal Forum and, therefore, we decline to examine the challenge and leave it open to the petitioner to avail remedy provided under the Code.

8. It is also provided that in case the petitioner approaches the Consumer Grievance Redressal Forum, for redressal of his grievance, the Forum will decide the same expeditiously preferably within twelve weeks from the date complaint is filed before it.

9. The petition stands disposed of accordingly."

2. Learned counsel for the petitioner has before this Court made, in this writ petition, the following prayers :-

"i. to issue a writ order or direction in the nature of certiorari to quash the order dated 19.7.2023 passed by Respondent no.4 through Letter No.2821/N.V.V. Kh-II, Va (As Annexure no.13 of the writ petition).

ii. to issue a writ order or direction in the nature of mandamus directing the respondents to issue a commercial electricity connection in the name of the petitioner.

iii. to issue a writ order or direction in the nature of mandamus directing the respondent no.4 not to recover Electricity dues of Mohan Lal from the petitioner and also not shift (sic.) the Electricity dues of Mohan Lal upon the petitioner house."

3. From the prayers, we find that the very same order dated 19.7.2023, which was challenged in Writ-C No.37208 of 2023, is being challenged in this writ petition also.

4. Learned counsel for the petitioner, relying upon the news item at page 31 of the writ petition, has stated before the Court that the Consumer Grievance Redressal Forum in Varanasi is not functioning.

5. Learned counsel appearing for the Electricity Department, however, has submitted that the Consumer Grievance Redressal Forum in Varanasi is definitely functioning.

6. From the records and the averments made in the writ petition it appears that in effect the prayer which is being made before this Court by means of the instant writ petition is that the application under Clause 7.10 of the U.P. Electricity Supply Code, 2005 when was not being decided, the grievance of the petitioner be looked into by this Court.

7. We, however, consider it appropriate to direct the learned counsel appearing for the Electricity Department to enquire as to whether the Consumer Grievance Redressal Forum at Varanasi is functioning.

8. List this case on 31.1.2025 as fresh.

Order Date :- 22.1.2025

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(Dr. Y. K. Srivastava, J.) (Siddhartha Varma, J.)

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1. On the last occasion we had asked learned counsel appearing for the Electricity Department as to whether the Consumer Grievance Redressal Forum in Varanasi was functional.
2. Today, learned counsel for the Electricity Department, Shri Udit Chandra has placed before us instructions dated 06.02.2025 of the Presiding Officer himself and has stated that the Presiding Officer was sitting at the forum and was also functioning.
3. Learned counsel for the Electricity Department, has also stated that complaint as was sent by the petitioner was wrongly sent to a wrong address and the communication dated 06.02.2025 which is handed over to us contains the correct address.
4. Considering what the learned counsel for the Electricity Department has stated, we are of the view that the counsel for the Electricity Department himself may now place the complaint of the petitioner which has been annexed as annexure No.2 to the writ petition before the Presiding Officer, Consumer Grievance Redressal Forum, Varanasi which is functioning at 64-Chandrika Nagar, Sagra, Varanasi. The petitioner, thereafter, shall appear before the forum on 25.02.2025 and he shall be given an opportunity of hearing. The forum shall make all endeavour to

complete the hearing within a period of one month.

5. With these observations, writ petition stands **disposed of**.

Order Date :- 14.2.2025

Karan

(Dr. Y.K. Srivastava, J.)

(Siddhartha Varma, J.)